Workflow Task: Initiate Form 0205 Messages Print Preview Reference ID: 67403

Kansas Department of Transportation
PRECONSTRUCTION CONFERENCE

MEMO TO:
District Engineer

FROM:
Area Engineer

OFFICE:
DATE:
TIME:
LOCATION:

CONTRACT No:
FEDERAL No:
PROJECT No: -
COUNTY:
TYPE OF CONSTRUCTION:
CONTRACTOR:

Additional cc's to include:

Insert an additional person to include on cc

ATTENDANCE

	Name	Business Telephone	Cell Telephone	Company or Organization	Email Address
1					

Add Attendee

Browse to insert a picture. Choose File Upload

I. Delegation of Authority

Contractor's Representatives

	Name	Business Telephone	Cell Telephone	Email Address
Project Superintendent:				
General Superintendent:				
Project Manager:				

KDOT Representatives

	Name	Business Telephone	Cell Telephone	Email Address
Construction Engineer:				
Field Engineering Admin:				
Area Engineer:				
Project Supervisor:				
Project Inspector:				
Eng. In Responsible Charge				
Public Affairs Information:				
Emergency Information:				

All correspondence is to be submitted to:

Click here to insert the City/County Representatives section

II. Progress Schedule and Payment

A. The Contractor shall submit a proposed schedule prior to beginning work on the project.

B. Early Start:

C. Late Start:

D. Tentative Start:

E. The only contract work allowed before the Notice to Proceed is contract surveying. No other contract work shall be allowed, including driving traffic signs stubs, until the Notice to Proceed is issued.

F. Working day charges are determined by the C.I.O.W. The Contractor has 10 calendar days to dispute differences.

G. Contractor shall notify project supervisor at least 24 hours in advance for required inspection on Saturdays.

H. Completion date requirements, liquidated damages, incentive/disincentives, and cleanup days are as follows.

I. Contractor shall submit an updated schedule to the Engineer within 5 business days after the following events occur(108.3 e)
   1. a contract change that effects the schedule by 10 working days
   2. a contract delay that effects the schedule by 10 working days
   3. work falls behind the latest schedule by 10 working days (14 days for CCD)

J. Is the Contractor requesting Electronic Deposit? ○ Yes ○ No

K. Does the Contractor want to be paid once or twice monthly? ○ Once ○ Twice

III. Right-of-Way/Utilities

A. Right of Way: ○ Yes ○ No Has all Right-of-Way been acquired? ○ Yes ○ No

B. Utilities: ○ Yes ○ No

Utility	Status	Expected Completion	Comments

Add Utility

IV. Labor Compliance

1. All Contractors/Subcontractors/trucking firms will be required to submit electronic payrolls using AASHTOWARE Projects Civil Rights Labor (CRL). Additional information that is required to be entered is Subcontractor payments and bidder quoter information. More information can be found at http://www.ksdot.gov/bureaus/burConsMain/crl.asp.

A. SubContractors
   1. Form 259, 260 and a current tax clearance certificate need to be submitted for Subcontractor approval.
   2. Subcontractors must be approved prior to them working on the project.
   3.

Name	Telephone	Work

Add Subcontractor

B. Wage Rate
1.The Contractor and all Subcontractors are required to meet minimum predetermined wage rates as shown in the General Wage Decision included in the contract.
2. If the appropriate classification for a worker is not listed, an additional classification must be requested. Additional wage rate information and a link with instructions for requesting an additional classification can be found at https://www.ksdot.gov/home/showpublisheddocument/990/638744282734531204
3. This form must be submitted to KDOT's Letting Engineer for approval.
4. Wage Rate Interviews will be conducted on at least a quarterly basis or a minimum of 1 for the project.

C. EEO Affirmative Action requirements. The Contractor is required to have an EEO Policy and Affirmative Action Plan on file with the Office of Civil Rights Compliance.

D. Has the Contractor designated an EEO Officer?

○ Yes ○ No, but they will at a later date.

EEO Officer Name: _____

E. The Contractor is required to submit weekly payrolls to this office using AASHTOWare Project Civil Rights Labor (CRL). The payroll should be submitted so that it will be in the CRL system no later than seven calendar days after the close of the Contractor's pay period. The payrolls should be numbered consecutively, and the last payroll submitted should be marked final. The work classifications or classification code number must be shown. The classifications shown on the payroll must coincide with the classification on the Wage Rate Decision in the contract.

F. The prime Contractor is also responsible for Subcontractors. The Subcontractors shall submit their payrolls to the prime Contractor using AASHTOWare Project Civil Rights Labor (CRL) for approval.

G. For required posters and bulletin boards, see Section 1.10.02 "Enforcement of Labor Provisions" of the KDOT Construction Manual or www.ksdot.gov/divadmin/civilrights/

1. Where will the project bulletin board be located?

   A. This will need to be onsite prior to work starting for the project.

2. Do you have the up-to-date posters required for this project bulletin board? ○ Yes ○ No

H. Discuss each point of the Davis Bacon act:

1. **The Davis-Bacon Act:** [40 U.S.C. Sect. 276a.] Davis-Bacon requires payment of locally prevailing wages and fringe benefits to all laborers and mechanics on federally-assisted construction projects in excess of $2,000.

   A. Regulations are set forth in 29 C.F.R. Parts 1, 3, 5 and 7.

   B. Employees on nonfederal aid and state-funded highway project contracts shall be paid at least the prevailing wage.

2. **Laborer or mechanic:** Defined as worker whose duties are manual or physical in nature (including those workers who use tools or who are performing the work of a trade) as distinguished from mental or managerial. [29 C.F.R. 5.2(m)]

   A. May include non-laborer and non-mechanic, such as foreman, if performing construction work more than 20% of time. [29 C.F.R. 5.2(m)]
   B. Executives, supervisors, salaried, and office employees are not covered.
   C. Helpers and Apprentices: Must be in approved programs.

3. **Wages:** Means the basic hourly rate of pay plus the reasonably anticipated rate of costs to the Contractor or Subcontractor in providing bona fide fringe benefits pursuant to an enforceable commitment communicated in writing to the laborers and mechanics affected. [29 C.F.R. 5.2(p)]
   A. Fringe benefits do not include benefits required by Federal, State or local law.
   B. Wages shall be paid at least once a week. [29 C.F.R. 5.5(a)(1)(i)]
   C. Laborers performing work in more than one classification may be paid at the rate specified for each classification. To pay split-classification wages, accurate records must be kept. [29 C.F.R. 5.59a)(1)(i)]
   D. The wage determination and the Davis-Bacon poster shall be posted at all times by the Contractor and its Subcontractors at the site of work in a prominent and accessible place where it can be easily seen by the workers. [29 C.F.R. 5.5(a)(1)(i)]
   E. Overtime shall be paid at a rate not less than one and one-half times the basic pay rate for all hours worked in excess of forty hours in a workweek. [29 C.F.R. 5.5(b)(1)(i)]

4. **Principal Contractor:** The Prime or General Contractor is responsible for the compliance of its employees, Subcontractors and lower-tier Subcontractors with Davis-Bacon. [29 C.F.R. 5.5(a)(6), 29 C.F.R. 9(b)(4)]

5. **Site of the Work:** Where Davis-Bacon wage rates apply. Usually means the physical place where the work called for in the contract will remain and any other site where a significant portion of the work is constructed, provided that the site is established specifically for the performance of the contract or project [29 C.F.R. 5.2(1)]

6. **Payroll and Basic Records:** Shall be maintained by the Contractor during the course of the work and for three years following completion of the contract.
   A. Records shall contain for each laborer or mechanic: name, address, social security number, job classification, hourly rates of wages paid, fringes or cash equivalents, daily and weekly number of hours worked, deductions made, gross and net wages paid. [29 C.F.R. 5.5(a)(3)]
   B. Contractor shall submit weekly payrolls to KDOT using AASHTOWare Project Civil Rights Labor (CRL). Identify laborer or mechanic by unique number. Do not use social security number. Contractor may use last 4 digits of social security number to identify laborer or mechanic. Do not include employee address. [29 C.F.R. 5.5(a)(3)]
   C. Prime Contractor is responsible for approval of Subcontractor payrolls using AASHTOWare Project Civil Rights Labor (CRL). [29 C.F.R. 5.5(a)(3)(ii)(A)]
   D. Each payroll shall be accompanied by a "Statement of Compliance" signed by Contractor or Subcontractor or his agent who supervises payment under the contract. [29 C.F.R. 5.5(a)(3)(ii)(B)]
   E. Contractor or Subcontractor shall make the records required available for inspection, copying, or transcription by KDOT or Department of Labor.

F. Failure to submit required payrolls or make them available may result in the suspension of any further payment and may be grounds for debarment. [29 C.F.R. 5.5(a)(3)(iii)]
G. Contractor or Subcontractor shall make employees available to KDOT or Department of Labor for interview.

*This document is an outline of the fundamental principles of the Davis-Bacon Act and is in no way intended to be a comprehensive analysis of all Contractor and Subcontractor requirements. If any Contractor or Subcontractor has specific questions regarding their legal obligations, they should seek competent legal counsel.

I. DBE ○ Yes ○ No

1. Does this project have a DBE goal? ○ Yes ○ No
   A. Contract DBE goal percentage: _____
   B. Contractor DBE commitment percentage at time of letting: _____
2. Is the list of DBE's current and unchanged from what was shown in the signed contract? ○ Yes ○ No
3. Is there DBE mobilization? ○ Yes ○ No
4. Is DBE trucking being used toward the goal? ○ Yes ○ No
   A. Has a copy of the trucking vehicle list (trucks) been submitted by the Prime Contractor? ○ Yes ○ No
   If the trucking vehicle list has not been received by the administering field office, no contract work by the DBE truckers will be allowed until the list has been received. DBE trucking process to maintain compliance while performing DBE trucking is in Special Contract Provision 07-18-80 latest version section (7). If there are additional questions, contact KDOT Office of Civil Rights Compliance at (785) 296-7940.

J. Highway Construction Trainees ○ Yes ○ No

1. Liquidated damages will occur if the Contractor does not meet the hours.
2. No work may begin until KDOT has approved the trainee schedule.
3. Submit weekly Form 231 with payroll.

K. Payment to Subcontractors & Suppliers (Section 109.6)

1. Bid item price sheets and 1st tier Subcontractors shall be submitted prior to first payment.
2. Subcontractors and suppliers shall be paid within 10 calendar days of receiving payment.
3. Within 15 calendar days after receiving payment from the Secretary, the prime Contractor shall certify individual line items for Subcontractor payments for subcontract services using AASHTOWare Project Civil Rights Labor (CRL)
4. Consider this your notice that failure to meet the requirements in section 109.6 KDOT will impose the following sanctions outlined in section 109.7 Sanctions for Failure to Pay Promptly.
   A. Failure to pay promptly without good cause, pay an interest penalty to the affected Subcontractor at the rate of 1.5% per month
   B. If a Contractor fails to comply with the certification requirements of subsection 109.6, the Secretary may impose liquidated damages of $50.00 per calendar day per Subcontractor for each day certification is late.
   C. If a Contractor fails to make payments according to subsection 109.6, the Secretary may impose liquidated damages of $50.00 per calendar day per Subcontractor for each day the certification is late.
   D. If a Contractor submits a certification stating payment has been made but knowing payment has not been made, (false certification), the Secretary may impose liquidated damages of $50.00 per calendar day per Subcontractor for each day the certification remains false.
   E. If a Contractor fails to comply with the payment requirements without good cause, submits a false certification, or repeatedly fails to comply with the cerification requirements, the Secretary may adjust a Contractors qualification rating, declare the Contractor is not a responsible Contractor, suspend a Contractor from bidding, or debar a Contractor from bidding.
   F. For each violation, Contractor may receive one or more sanctions provided.

V. **Safety**

A. The Contractor and Subcontractor must comply with all applicable safety regulations, including OSHA.

B. The Contractor is required to submit a copy of their safety policy.

C. Contractor's Safety Officer. _____

D. What Safety Equipment does the Contractor require for inspectors on the project?

E. KDOT Safety personnel may inspect the project.

VI. Traffic Control

A. All traffic control devices shall conform to the 2015 Standard Specifications, the contract Special Provisions, the Plans, and the current Manual on Uniform Traffic Control Devices (MUTCD).

B. All traffic control devices on the project are required to be NCHRP 350 or MASH report 2009 compliant. The Contractor shall submit certifications of compliance prior to use.

C. All flaggers shall have communication skills to effectively communicate with the public and shall follow the State of Kansas Traffic Control Handbook for flaggers.

D. Traffic Control Contacts
Contractor's Representative: _____ Phone: _____
Emergency Contact: _____ Phone: _____

KDOT Contact	Phone

Insert another KDOT Contact

VII. Project Materials

A. Use only approved mix designs for concrete and asphalt. Submit the mix designs to KDOT using the lead times in the Specifications.

B.

Supplier	Material	Location

Insert item

C. Materials Control.

1. Before being used on the project, all project materials are to be tested and approved. Furnish all required samples, sample test reports and/or certifications.
2. Obtain all material certifications and provide required information on the certification per Division 2600.
3. Type A and B certifications may be e-mailed to KDOT#CM.Typeabcerts@ks.gov or sent to the Materials Certification Technician (per section 2601) with a copy to the construction office. A sample cover sheet is in section 2601.
4. "Buy America" Materials - Section 106.1.C Standard Specifications.
5. Incorporate only tested or approved material into the project. Any work utilizing unaccepted materials will be performed at the Contractor's risk. Such material will be removed from the project or the material accepted at a reduced price at the discretion of KDOT.
6. Use only approved aggregate in Asphalt and Concrete mixes.
7. Submit a DOT 649 for all aggregates used on the projects.

D. Stored Materials (Construction Stockpile): ○ Yes ○ No

1. KDOT must receive the proper certifications before construction stockpile payment can be made for stored materials..
2. Items under $5,000.00 valuation will not be applicable.
3. The AWP program requires a line item designation for each item of stored materials. Properly designate each line item.
4. Paid invoices are no longer required.
5. Only include actual material and shipment costs. Do not include testing fees, stockpiling costs, etc. Payment can only be made up to 90% of bid item.

E. Locating and Equipping Field Labs.

VIII. Project Construction

A. Surveying ○ Yes ○ No

1. Surveying may begin before the Notice to Proceed is issued and KDOT should be notified when this work begins.
2. Prior to construction a level circuit must be completed to verify or re-establish all plan benchmark elevations.
3. All Right-of-Way & Easements shall be marked, prior to any construction activity in that area.
4. Prior to construction, submit to KDOT in a timely manner, copies of the Section Corner Endangerment Reports that were submitted to the appropriate governmental custodians. All monuments for the Public Land survey System must remain intact or be professionally relocated upon completion of the project in accordance with K.S.A. 58-2011, et seq.
5. Survey Information is to remain on the project at all times.
6. KDOT shall receive all survey field books, electronic as built field construction plans, and other records upon completion and before full payment will be made.

B. Environmental

1. Stormwater
   ○ No disturbance ○ < one acre ○ >= 1 acre KDOT ○ >= 1 acre LPA
2. Environment Protection. ○ Yes ○ No
   If applicable, an environmental packet containing permits from the following agencies will be on file at the District Office and the Area Office.
   - ☐ Department of the Army
   - ☐ Kansas State Board of Agriculture
   - ☐ Kansas Corporation Commission
   - ☐ Kansas Department of Wildlife and Parks
   - ☐ Department of Health and Environment
   - ☐ Kansas Historical Society

C. Grading ○ Yes ○ No

1. Borrow/Waste Area - The Contractor is responsible for obtaining all clearances, permits, and licenses for borrow and waste areas. Copies of these must be submitted to KDOT before the areas are used.
2. Is the Contractor accepting plan volumes for Contractor Furnished Excavation plus or minus known changes?
   ○ Yes ○ No ○ N/A
   Original cross sections must be submitted by the Contractor for calculation of Contractor Furnished Excavation.

D. Asphalt Paving ○ Yes ○ No

1. QC/QA HMA ○ Yes ○ No
   Which of the first 2 lots does the Contractor want to be subject to density pay adjustment? KDOT must be informed of this decision prior to the Contractor starting production.
   ○ Both Lots 1&2 ○ Only Lot 2 ○ None
2. Contractor is to schedule operations to minimize hauling over the surface course.

E. Concrete Paving ○ Yes ○ No

1. Properly handle and store all rebar on the project site. Store it on pallets off the ground. Cover epoxy coated steel with opaque material immediately upon delivery, unless it is placed as soon as it arrives.

F. Structures ○ Yes ○ No

1. Dual Checking of Critical Bridge Elements
   a. Project and Critical Bridge Element control points must be set under the supervision of a Licensed Professional Land Surveyor.
   b. Prior to construction of Critical Bridge Elements, project and Critical Bridge element control points must be checked by a separate independent survey. The second survey is to be performed by a different Licensed Professional Land Surveyor with their own unique second set of notes.
   c. After each element is constructed a licensed Professional Land Surveyor must verify the location and elevation of the Critical Bridge Element.

2. Falsework ○ Category 1 ○ Category 2 ○ Both ○ NA

   Cat 1 - Submit to the Engineer for review by the State Bridge Office (or Bureau of Local Projects) and, if applicable, the railroad company, 7 copies of detailed falsework plans designed and sealed by a Professional Engineer on the Category 1 structures listed below.

3. Controlled Demolition ○ Yes ○ No
   - ☐ Category A
   - ☐ Category B
   - ☐ Category C
4. Field Erection Supervisor ○ Yes ○ No
   Field Erection Supervisors must be prequalified in accordance with section 737 of the standard specifications.
   Contractor's Field Erection Supervisor: _____
5. Drilled Shafts ○ Yes ○ No
   A pre-drilled shaft meeting will be held shortly before the construction of the drilled shafts.
6. Properly handle and store all rebar on the project site. Store it on pallets off the ground. Cover epoxy coated steel with opaque material immediately upon delivery, unless it is placed as soon as it arrives.
7. Water can only be added to concrete trucks by calibrated device or buckets and only when allowed by specification.

G. Haul Roads ○ Yes ○ No
   1. What haul roads will be used for this project?
   2. How will their condition be documented?

H. Extra work will be performed according to Standard Specifications. Extra work shall not be started before approval is given by KDOT. The Contractor shall make a written request to this office if they feel they are entitled to additional compensation for extra work, **prior to starting this work**. Any requests for additional compensation which KDOT cannot verify the costs for labor, equipment, and materials will not be considered. Equipment rates need to be approved before extra work begins.

I. Construction Requirements special to the project

J. Project related questions/answers that were submitted through Bid Express website.

K. Partnering
   1. Partnering Objectives:
   2. Construction Job Site Conferences:
   3. Project Partnering Conference ○ Yes ○ No
   4. Specific Partnering Issues:

IX. General Discussion

A. Logo signs ○ Yes ○ No
   Logo signs are not KDOT property. They are owned by the company advertising and they pay rent to KDOT through our Contractor, Kansas Logos, Inc. The following information is included on standard plan sheet TE402. Contractors need to be aware of their responsibility to contact Kansas Logos, Inc

   "The Contractor will notify Kansas Logos, Inc. at 1-800-449-4420 one week in advance of when the logo panels need to be removed from the sign structure. Kansas Logos, Inc. will remove, store and reinstall the logo panels upon completion of construction. If Kansas Logos, Inc. does not remove the logo panels within one week of notice, the Contractor will remove the logo panels and take reasonable care of them until Kansas Logos, Inc. can retrieve the logo panels."

B. Special Provisions of Note

C. Reminder for KDOT to input project description and any restrictions into KSCARS Program.

Meeting adjourned at: _____

Proceed Submit

Attachments:

Attachments View Current Attachment

Choose File No file chosen Upload Delete

After Browsing for the File, press Upload to attach the document